

Chandan Lal @ Chandan Kumar v. U.P. Power Corporation Limited And 3 Others

High Court of Judicature at Allahabad · Division Bench · 21.3.2023 · Writ - C No. 8839 of 2023 · **Final assessment quashed; fresh Supply Code order left open.**

HEADNOTE

Final assessment of electricity dues in a theft case quashed where the provisional assessment notice fixed no date of hearing and the objection filed was not considered. Liberty reserved to pass a fresh order strictly under the procedure in the U.P. Electricity Supply Code, 2005. Writ disposed of.

FACTUAL SUMMARY

Chandan Lal alias Chandan Kumar challenged orders of respondent no. 2 dated 10 January 2022 and 18 June 2022, and a recovery citation dated 25 February 2023 issued by respondent no. 4, for dues in an electricity-theft case. A provisional assessment notice dated 17 December 2021, served on 25 December 2021, fixed no date of hearing. He filed objections on 8 January 2022. Without dealing with them, the respondents passed a final assessment on 10 January 2022 and issued the citation. Departmental counsel could not defend the order and sought liberty to decide afresh.

REUSABLE CONSTRUCTIONS

1. A final assessment in an electricity-theft case cannot stand where the provisional assessment notice fixes no date of hearing and the objection filed is not considered; the licensee may pass a fresh order only by following the procedure under the U.P. Electricity Supply Code, 2005. ¶ 2-4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

final assessment in a theft case without a hearing date or consideration of the objection

HOLDING

Where the provisional assessment notice in a theft case fixes no date of hearing and the final assessment is passed without considering the objection, the final assessment is quashed, leaving the licensee to pass a fresh order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 2-4

FLAG no numbered clause; the order refers only to the procedure under the U.P. Electricity Supply Code, 2005

PRINCIPLE TAGS

final-assessment-quashed-no-hearing-date Final assessment dated 10.01.2022 quashed because the provisional notice fixed no hearing date and the objection of 08.01.2022 was not considered; a fresh order may be passed only under the Supply Code procedure. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED THEFT AND THE QUANTUM OF DUES

Left open for a fresh order strictly under the U.P. Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — ORDER DATED 18.06.2022 AND RECOVERY CITATION DATED 25.02.2023

Both were challenged; the operative order quashes only the final assessment dated 10.01.2022. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.